Arctic waters may temporarily waive the requirements of paragraph 1 of this regulation for ships flying the flag of that Party while operating in waters subject to the sovereignty or jurisdiction of that Party, taking into account the guidelines to be developed by the Organization. No waivers issued under this paragraph shall apply on or after 1 July 2029.

5 The Administration of a Party to the present Convention which allows application of paragraph 4 of this regulation shall communicate to the Organization for circulation to the Parties particulars of the waiver thereof, for their information and

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SOURCE: MEPC.329(76).pdf
5 The Administration of a Party to the present Convention which allows application of paragraph 4 of this regulation shall communicate to the Organization for circulation to the Parties particulars of the waiver thereof, for their information and
appropriate action, if any."

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RESOLUTION MEPC.329(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO RESOLUTION MEPC.329(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO

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SOURCE: MEPC.330(76).pdf
RESOLUTION MEPC.330(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO

RESOLUTION MEPC.330(76)
(adopted on 17 June 2021)

AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO

Amendments to MARPOL Annexes I and IV

(Exemption of unmanned non-self-propelled barges from certain survey and certification requirements)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Mari time Organization

concerning the functions of the Marine Environment Protection Committee conferred upon it by international conventions for the prevention and control of marine pollution from ships,

RECALLING ALSO article 16 of the International Conven tion for the Prevention of Pollution from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the

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SOURCE: MEPC.330(76).pdf
from Ships, 1973, as modified by the Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers upon the appropriate body of the
Organization the function of considering and adopting amendments thereto,

HAVING CONSIDERED, at its seventy -sixth session, proposed amendments to MARPOL Annexes I and IV concerning the exemption of unmanned non -self-propelled (UNSP) barges from survey and certification requirements, which were circulated in accordance with article 16(2)(a) of MARPOL,

1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to MARPOL Annexes I and IV, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 May 2022 unless prior to that date not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments;

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SOURCE: MEPC.330(76).pdf
not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 November 2022 upon their acceptance in accordance with paragraph 2 above;

4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL, to transmit certified copies of the present resolution and the text of the amendments contained in the annexes to all Parties to MARPOL;

5 REQUESTS ALSO the Secretary-General to transmit copies of the present resolution and its annexes to Members of the Organization which are not Parties to MARPOL.

RESOLUTION MEPC.330(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 2 -

ANNEX

AMENDMENTS TO MARPOL ANNEX I

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SOURCE: MEPC.330(76).pdf
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 2 -

ANNEX

AMENDMENTS TO MARPOL ANNEX I

(Exemption of UNSP barges from certain survey and certification requirements)

Regulation 1
Definitions

1 A new paragraph 40 is added as follows:

"40 Unmanned non-self-propelled (UNSP) barge means a barge that:

.1 is not propelled by mechanical means;

.2 carries no oil (as defined in regulation 1.1 of this Annex);

.3 has no machinery fitted that may use oil or generate oil residue (sludge);

.4 has no oil fuel tank, lubricating oil tank, oily bilge water holding tank and oil residue (sludge) tank; and

.5 has neither persons nor living animals on board."

Regulation 3
Exemptions and waivers

2 Paragraph 2 is replaced by the following:

"2 Particulars of any such exemption, except those under paragraph 7 of this regulation, granted by the Administration shall be indicated in the Certificate referred to in regulation 7 of this Annex."

3 A new paragraph 7 is added as follows:

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SOURCE: MEPC.330(76).pdf
regulation, granted by the Administration shall be indicated in the Certificate referred to in regulation 7 of this Annex."

3 A new paragraph 7 is added as follows:

"7 The Administration may exempt a UNSP barge from the requirements of regulations 6.1 and 7.1 of this Annex, by an International Oil Pollution Prevention Exemption Certificate f or Unmanned Non -self-propelled Barges, for a period not exceeding five years provided that the UNSP barge has undergone a survey to confirm that the conditions referred to in regulations 1.40.1 to 1.40.5 of this Annex are met."

Regulation 8
Issue or endorsement of certificate by another Government

4 Paragraph 4 is replaced by the following:

"4 No International Oil Pollution Prevention Certificate or UNSP Exemption Certificate shall be issued to a ship which is entitled to fly the flag of a State which is not a Party."

RESOLUTION MEPC.330(76) (adopted on 17 June 2021)
AMENDMENTS TO THE ANNEX OF THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 3 -